



PROCEDURES FOR DETERMINING ENGLISH LEARNER PARTICIPATION IN THE VIRGINIA ASSESSMENT PROGRAM

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PURPOSE

This document provides information about the participation of English Learners (ELs) in the Virginia Assessment Program (VAP) and includes the following:

- the definition of an EL;
- the procedures for determining the EL's participation in the Virginia Assessment Program, including how the student will be assessed in each content area;
- the descriptions of allowable accommodations available to ELs;
- the guidelines for assessing ELs with disabilities; and
- providing accommodations for students formerly identified as ELs.

SECTION I: DEFINITION OF AN ENGLISH LEARNER

According to the federal definition as described in Section 9101(25) of the *Elementary and Secondary Education Act of 1965 (ESEA)*, as amended by the *Every Student Succeeds Act of 2015 (ESSA)*, an EL in the Commonwealth of Virginia is a student:

- (A) who is aged 3 through 21;
- (B) who is enrolled or preparing to enroll in an elementary school or secondary school;
- (C)(i) who was not born in the United States or whose native language is a language other than English;
- (ii)(I) who is a Native American or Alaska Native, or a native resident of the outlying areas; and
- (II) who comes from an environment where a language other than English has had a significant impact on the individual's level of English language proficiency; or
- (iii) who is migratory, whose native language is a language other than English, and who comes from an environment where a language other than English is dominant; and
- (D) whose difficulties in speaking, reading, writing, or understanding the English language may be sufficient to deny the individual —
- (i) the ability to meet the challenging State academic standards;
- (ii) the ability to successfully achieve in classrooms where the language of instruction is English; or
- (iii) the opportunity to participate fully in society.

[\(ESEA Section 8101\(20\)\)](#)

SECTION II: DETERMINING EL PARTICIPATION IN THE VIRGINIA ASSESSMENT PROGRAM

Section 1111(b)(3)(C)(i) of ESEA requires that EL participate in state content assessments. Therefore, as with all students enrolled in Virginia public schools, all EL participate in the Virginia Assessment Program.

Section 8 VAC20-131-30. Student Achievement Expectations, Part III. STUDENT ACHIEVEMENT, paragraph G of the Code of Virginia states that any student identified as an English Learner (EL) shall participate in the Virginia Assessment Program. A school-based committee shall convene and make determinations regarding the participation level of EL students in the Virginia Assessment Program (Virginia Board of Education, 2018).

Therefore, a school-based EL Committee should be formed to determine how ELs will participate in the Virginia Assessment Program and which, if any, testing accommodations and exemptions are appropriate. The EL Committee should determine each EL's participation in each statewide assessment individually based on data collected from the student's educational record.

Members of the EL Committee may include:

- the EL's English as a Second Language teacher;
- the EL's course content teacher(s);
- an administrator or designee (e.g. guidance counselor or reading specialist);
- the Title III coordinator;
- the EL's parent or guardian; and,
- the EL, if appropriate.

The EL Committee should specify each EL's participation in the Virginia Assessment Program for each content area using one of the following options:

- Virginia Assessments without testing accommodations;
- Virginia Assessments with testing accommodations (listing specific testing accommodations); or
- Exemption from testing where permitted with an explanation for the exemption.

Exemptions from testing must be documented in the student's *EL Assessment Participation Plan* and conveyed to the student's parent(s) or guardian(s). Refer to [Table 1](#) for an overview of the exemptions from the Virginia Assessments available to ELs.

TABLE 1: AVAILABLE EXEMPTIONS FROM THE VIRGINIA ASSESSMENTS

Content Area	Available Exemptions on Virginia Assessments
Reading	A recently arrived EL who has attended school in the United States ¹ for less than 12 cumulative months may receive a one-time exemption for the SOL <i>Reading</i> test in grades 3 through 8. Note: If a student is exempt from the SOL Reading test in Grade 5 or Grade 8, the student would also be exempt from corresponding Grade 5 or Grade 8 <i>Integrated Reading & Writing component</i> . No exemption is available for the End-of-Course (EOC) SOL <i>Reading</i> test.
Mathematics	An EL may not be exempted from the <i>Mathematics</i> SOL tests.
Science	An EL may not be exempted from the <i>Science</i> SOL tests.
History/ Social Science	An EL in grades 3 through 8 may exercise a one-time exemption from the SOL <i>Virginia Studies</i> or <i>Civics & Economics</i> tests. No exemption is available for the End-of-Course SOL <i>History/Social Science</i> tests.
Writing	No exemption is available for the End-of-Course (EOC) SOL Writing test.

RECENTLY ARRIVED ENGLISH LEARNERS

With the revision to ESEA, now ESSA, further guidance is available for determining students identified as recently arrived English learners. According to the [Resource Guide: Accountability for English Learners under the ESEA](#) that supports ESSA, published by the U.S. Department of Education:

Recently arrived EL are defined [...] as EL who have been enrolled in schools in the U.S. or the District of Columbia (not including Puerto Rico and the outlying areas) for less than 12 cumulative months (ESEA sections 1111(b)(3)(A) and 8101(48). This means that if an EL leaves the U.S. after six months in an U.S. school, then returns the following school year, the first six months counts towards that student's 12 months of time in school. Only months in which school is in session should count toward the 12 months (e.g., not summer vacation months).

...if a student enters and leaves the U.S. so that a State might administer annual assessments multiple times before that EL has attended a full 12 months of school in the U.S., a State may only exempt a recently arrived EL from *one, and only one*, administration of the State's reading/language arts assessment.

(U.S. Department of Education, 2017)

¹ Students arriving from Puerto Rico are also eligible for this exemption.

SECTION III: DETERMINING HOW AN EL WILL BE ASSESSED

The EL committee will determine an EL's participation in the Virginia Assessments for each content area. Consideration should be given to the EL's level of English proficiency, level of prior schooling in the native country or home language, and level of schooling in the United States.

When determining how the EL will be tested in each assessed content area, the EL Committee should consider the following questions:

1. Is this the EL's first year of enrollment in the United States?
2. Should the EL be exempted from the SOL Reading test (grades 3 through 8), recognizing that this student is in the first year of enrollment in a United States school? Refer to [Table 1](#) for details regarding the one-time exemption from the SOL Reading test in grades 3 through 8.
3. Is the EL eligible for the SOL History/Social Science exemption? Refer to [Table 1](#) for information regarding exemptions from SOL assessments available to EL.
4. Does the EL receive accommodations on a routine basis during classroom instruction and assessment in the content area covered by the Virginia Assessment?
5. Is the EL also identified as having a disability under the Individuals with Disabilities Education Improvement Act of 2004 (IDEA) or as an "otherwise qualified handicapped" student under Section 504 of the Rehabilitation Act of 1973?
 - a. Determinations about the student's assessment participation must be made by the Individualized Education Program (IEP) Team or 504 Committee in collaboration with the EL Committee and documented in the student's IEP or 504 Plan as well as the student's EL Assessment Participation Plan (where applicable).
 - b. For detailed information on assessment participation of students with disabilities, refer to [Participation in the Virginia Assessment Program: A Resource for Educators and Parents of Students with Disabilities](#). Additionally, [Section VI](#) of this document provides information on students dually identified as an English Learner with a disability.

SECTION IV: SELECTING APPROPRIATE TESTING ACCOMMODATIONS FOR ELS

Testing accommodations involve changes to testing procedures, testing materials, or the testing environment to allow students meaningful participation in an assessment. However, testing accommodations must not alter the test construct or the test content being measured.

Testing accommodations for ELS are designed to address unique linguistic needs during the normal process of English language acquisition. When appropriately assigned, testing accommodations allow ELS to demonstrate knowledge in a subject, regardless of their English language proficiency level, providing schools and divisions an accurate picture of content area achievement. Testing accommodations must not provide the EL with an unfair advantage. Likewise, testing accommodations must not disadvantage the EL.

Testing accommodations for an EL on the Virginia Assessments should be selected from accommodations that the student uses routinely during classroom instruction and assessments. However, some accommodations used during classroom instruction and assessments may not be available or appropriate for the Virginia Assessments. Furthermore, using an unfamiliar testing accommodation during testing may negatively affect the EL's performance. The EL Committee should determine the appropriate testing accommodations for each EL for each Virginia Assessment.

It is helpful to utilize the following steps.

1. Determine the EL Level of English Language Proficiency

In Virginia, to determine an EL's English language proficiency (ELP) level, refer to the student's Overall Proficiency Level on the most recent WIDA Screener, WIDA MODEL, ACCESS for ELLs, or Alternate ACCESS score report. Students at ELP Levels 1.0 through 4.3 are considered English Learners and are eligible for testing accommodations on Virginia Assessments. Once students reach proficiency level 4.4, they are identified as Former English Learners (Former ELs) or students in their first through fourth year of exiting an LIEP². First- and second-year Former ELs are eligible for testing accommodations. More information about Former EL assessment participation is located in [Section VII](#).

To determine the English language proficiency level of an EL with a hearing or visual impairment, use the WIDA ACCESS for ELLs or WIDA Alternate ACCESS test. Qualifying ELs with a hearing or visual impairment will be eligible to participate in two or three domains and have a composite English Language Proficiency (ELP) level calculated based on the domains assessed. Before determining student participation in two or three test domains, please refer to the

² Language Instruction Education Program

WIDA Accessibility and Accommodations Manual to review accommodations available for EL students with disabilities.

To determine the English language proficiency level of an EL in Kindergarten with a significant cognitive disability, use the WIDA Alternate ACCESS K-2 test.

Virginia Checklist for English Learner (EL) students in Kindergarten with Significant Cognitive Disabilities (Virginia ELP Checklist K) and Kindergarten through Grade 12 with Hearing and Visual impairments (Virginia ELP Checklist K-12) are still available for students who cannot be assessed in two or more domains.

If an EL does not have a score from an ACCESS for ELLs test or the Virginia ELP from the previous spring, the WIDA Screener or WIDA MODEL assessment may be administered to determine the student's level of English proficiency. Please note, students may not exit from EL status using a score received on the WIDA Screener or WIDA MODEL.

2. Consider Student Characteristics When Selecting Accommodations

The EL Committee is responsible for developing a plan to document each EL's participation in the Virginia Assessments. This plan should be developed using a team approach rather than being developed by one educator at the school. Additionally, testing accommodation determinations should be based on additional evidence collected from the EL educational record, such as:

- demographic information, including grade, age, number of years in U.S. schools, prior schooling;
- standardized testing scores and other academic testing achievements;
- current academic achievement, including general education achievement and comments from general education teachers; and,
- English Language Proficiency level.

3. Assign Accommodations that are Available for EL & Former EL

Direct and indirect linguistic testing accommodations are available to all ELs and former ELs (Years 1 and 2). As deemed appropriate, certain testing accommodations may be more appropriate for an EL at particular English language proficiency levels and certain Virginia Assessments. Refer to [Section VI: Descriptions of Testing Accommodations Available to ELs](#) for more information on all direct and indirect linguistic testing accommodations.

Direct linguistic testing accommodations involve targeting the linguistic features to allow an EL to access the test content. The following direct linguistic testing accommodations are available to ELs on the Virginia Assessments:

- Test Directions Delivery
- Read-Aloud Test

- Audio Test
- Read-Aloud *Reading* Test (Specific criteria apply)
- Audio *Reading* Test (Specific criteria apply)
- Bilingual Dictionary
- Dictation to a Scribe
- English Dictionary

Indirect linguistic testing accommodations involve adjustments to the conditions under which ELs take tests. The following indirect linguistic testing accommodations are available to ELs on the Virginia Assessments:

- Multiple Test Sessions
- Visual Aids
- Examiner Records Responses
- Flexible Schedule

SECTION V: DESCRIPTIONS OF TESTING ACCOMMODATIONS AVAILABLE TO ELS

DIRECT LINGUISTIC ACCOMMODATIONS

Direct linguistic testing accommodations involve adjustments to the language of the test. The following direct linguistic testing accommodations are available to ELs on the Virginia Assessments.

Test Directions Delivery

The student may receive a copy of the bold, “SAY,” testing directions (in English only) from the Examiner’s Manual (for online tests) or the Supplement to the Examiner’s Manual (for paper tests). Before providing the directions to the student, the student’s copy must be reviewed by a second staff member to ensure all the SAY directions from the Manual are included. The non-bold directions that provide instructions only for the Examiner/Proctor should be removed.

Read-Aloud and Audio Test

The read-aloud or audio accommodation on *Mathematics, Science, History/Social Science, and Writing* assessments is allowed for ELs as specified in the EL Assessment Participation Plan.

The EL Assessment Participation Plan must include specific directions for the administration of the read-aloud accommodation. For example, a student’s accommodation may require the entire test to be read aloud or may require having words, questions, or sentences read aloud only when requested by the student. All read-aloud administrations must be recorded or proctored throughout the entire read-aloud test administration. Guidelines for Proctoring and/or Recording a Test Session are located in Appendix C of the [Examiner’s Manuals](#).

Read-Aloud Reading and Audio Reading Test

The read-aloud or audio accommodation is available to ELs for the *Reading* assessments under only two circumstances:

1. If an EL also has an eligible disability and the accommodation is documented in the student's IEP or 504 Plan.
2. An EL may receive the read-aloud or audio testing accommodation on the *EOC Reading* test if all of the following criteria are met:
 - the student is retaking the *EOC Reading* test, having failed the previous attempt(s) without using the read-aloud or audio testing accommodation; and
 - the student's EL Assessment Participation Plan lists the read-aloud or audio testing accommodation for other tests; and
 - the student receives the read-aloud or audio testing accommodation in the classroom.

More information is found in Appendix B of all [Test Implementation Manuals](#).

Bilingual Dictionary

ELs may use a bilingual dictionary on tests following these guidelines:

- The bilingual dictionary must be individually offered to each EL documented to have this accommodation for testing.
- The bilingual dictionary must be a general, word-to-word bilingual dictionary.
- The bilingual dictionary must not be a specialized dictionary, such as a subject-specific dictionary, rhyming dictionary, picture dictionary, etc.
- The bilingual dictionary must be a paper dictionary. Electronic bilingual dictionaries or translators are not allowed.
- The bilingual dictionary may be either school-owned or student-owned.
- The bilingual dictionary should be familiar to the EL. Testing should not be the first time an EL uses a bilingual dictionary.
- The bilingual dictionary must not be altered with hand-written notes in the margins nor include additional materials, such as class notes.
- The bilingual dictionary may be used alone or with the English dictionary accommodation.

Dictation to a Scribe

Use these guidelines when this accommodation is used on the short-paper component of the EOC Writing Assessment. The student must be assessed individually to ensure that other test takers are not distracted.

The student will dictate in English his/her response to the prompt for the short-paper component of the EOC Writing assessment to a school official (scribe) who will transcribe it. The scribe, who should have experience working with the student, must format, capitalize, and punctuate only as directed by the student. The student is not required to spell each word to the scribe. Care must be taken by the scribe not to provide help on test items. Examples of prohibited help include, but are not limited to: discussing test items, providing hints or clues, giving reminders, giving verbal indications or non-verbal cues about the correctness of a student's answer. The session between the student and the scribe must be recorded or proctored.

Information on implementing this accommodation for the Online Short-Paper Component and the Guidelines for Proctoring and/or Recording a Test Session is located in Appendix C of the [Test Implementation Manuals](#).

English Dictionary

ELs may use an English dictionary on tests following these guidelines:

- The English dictionary must be a general dictionary without a thesaurus section.
- The English dictionary must not be a specialized dictionary, such as a subject-specific dictionary, rhyming dictionary, picture dictionary, etc.
- The English dictionary must be a paper dictionary. An electronic dictionary is not allowed.
- The English dictionary may be either school-owned or student-owned.
- The English dictionary should be familiar to the EL. Testing should not be the first time an EL uses the English dictionary.
- The English dictionary must not be altered with hand-written notes in the margins nor include additional materials, such as class notes.
- The English dictionary may be used alone or with the bilingual dictionary on Non-Writing SOL tests and the short-paper component of the Writing test³.
- The English dictionary is not permitted on the multiple-choice component of the EOC Writing test.

³ For the short-paper component of the EOC Writing test, the English dictionary is available to all students and does not need to be designated as a testing accommodation.

INDIRECT LINGUISTIC ACCOMMODATIONS

Indirect linguistic testing accommodations involve adjustments to the conditions under which EL take the test. The following indirect linguistic testing accommodations are available to ELs on the Virginia Assessments.

Multiple Test Sessions⁴

ELs who require multiple test sessions, when the test will be completed in two or more school days, must be administered a paper test. When administering a paper test, care must be taken to ensure that the student is exposed only to the test items in the portion of the paper test that he/she is attempting that day. Previously completed items and items not yet accessed must be sealed to prevent accidental exposure to the student.

Visual Aids

Templates or masks that are blank allow a student to see one word, sentence, line, or test item at a time.

- Use this accommodation for ELs who require a paper test and the use of a mask or template.
- The Line Reader Mask, Answer Mask, and Highlighter tools are available to all students taking an online test and are not considered accommodations. Students may not hold a template or mask up to or over the testing device's screen.
- Students taking online tests must receive prior practice using the Line Reader Mask, Answer Mask, and Highlighters tools on practice items using [TestNav 8](#).

Examiner Records Responses

ELs who are unable to respond to test items by marking an answer document or by selecting the answer online may have an Examiner/Proctor record their responses. The student may mark in the test booklet, respond verbally, point, or otherwise indicate a response. The Examiner must transfer the student's responses to the regular answer document or select them on the student's testing device.

If the student marks in his/her own test booklet, the answers are transcribed onto the answer document. The student's answer choices for paper or online assessments must be verified by a second school official to ensure that no errors in transcription occur. The student's name should be clearly printed on the test booklet and the booklet returned with all other secure materials.

⁴ The short-paper component of the EOC Writing assessment, whether administered on paper or online, must be completed in one school day and does not qualify for multiple test sessions; however, the student may be given breaks under secure conditions.

The student may give the Examiner directions on how to respond to online Technology Enhanced Items (TEI) items by responding verbally, pointing, or otherwise indicating his/her answers. The student must be assessed individually to ensure that other test takers are not distracted.

The session between the student and the scribe must be recorded or proctored. Information on implementing this accommodation and the Guidelines for Proctoring and/or Recording a Test Session is located in Appendix C of [Test Implementation Manuals](#).

Flexible Schedule

Students who require breaks but not testing across multiple days must complete the test in one school day. The schedule for breaks must be determined before testing and be based on the routine use of scheduled breaks during classroom assessments.

The Test Examiner and School Test Coordinator should work together to establish the procedure for notifying the student to begin and end a break during testing. Breaks are available for either online or paper tests. The break(s) must be supervised. Test security must be maintained at all times during the break(s). The student must not be allowed to discuss the test in any way, must not have access to any educational materials or electronic devices during the break(s), and must not disrupt other students who are continuing to test.

Also, for test security, the student's test materials must not be accessible or viewable by other students or by school personnel during the break(s). If the student is testing online, the student should either be exited from the online test or, if the testing room will be securely maintained, the student's screen should be turned off or covered prior to the break(s) to maintain test security.

SECTION VI: STUDENTS DUALY IDENTIFIED AS ENGLISH LEARNERS WITH A DISABILITY

ELs who are also students with disabilities are frequently referred to as “dually identified.” All students, including dually identified students, must participate in the state’s accountability system. Special testing accommodations are available to a dually identified student based on the student’s disability and must be documented in the student’s IEP/504 Management Plan. Additionally, a dually identified student may participate in alternate assessments if eligibility requirements are met. For detailed information on assessment participation of students with disabilities, refer to the [Participation in the Virginia Assessment Program: A Resource for Educators and Parents of Students with Disabilities](#).

The IEP/504 team and EL committee must work collaboratively to determine the assessment participation of dually identified students following these guidelines:

- The IEP/504 team and EL committee jointly determine the statewide assessment participation based on the dually identified student's disability and EL status.
- The IEP/504 team and EL committee jointly determine testing accommodations based on the student's disability and EL status.
- Statewide assessment participation and testing accommodations must be documented in the student's IEP/504 Management Plan and EL Assessment Participation Plan.

FREQUENTLY ASKED QUESTIONS (FAQ) REGARDING DUALY IDENTIFIED STUDENTS

The following Frequently Asked Questions are provided for clarification on assessment participation of dually identified students.

1. *Is a dually identified student eligible for direct and indirect linguistic testing accommodations?*

Yes. Testing accommodations are available to the dually identified student based on the student's EL status as documented in the student's EL Assessment Participation Plan.

2. *Is a dually identified student eligible for the same special testing accommodations as non-EL students with disabilities?*

Yes. Special testing accommodations are available to a dually identified student based on the student's disability as documented in the student's IEP/504 Management Plan. For example, a dually identified student who is eligible for the Bilingual Dictionary accommodation based on his/her EL status may also be eligible for the read-aloud or audio accommodation for their SOL Reading test based on his/her disability status.

3. *Are test exemptions available to a dually identified student?*

Yes. EL-specific test exemptions are available to a dually identified student based on the student's EL status. EL test exemptions resulting from the student's EL status must be documented in the student's IEP/504 Management Plan and the EL Assessment Participation Plan.

SECTION VII: FORMER ENGLISH LEARNERS (FORMER EL)

[Superintendent's Memo #168-17: English Proficiency Criteria for ACCESS for ELLS® 2.0 English Language Proficiency \(ELP\) Assessment - 2016-2017 Assessment Year](#) introduced the revised exit criteria for determining the monitored status of students no longer to be considered as English Learners. Aligning with WIDA score scale changes, Virginia defines an overall proficiency score of 4.4 as the English proficiency criterion that determines transition from English learner to monitored status (Virginia Department of Education, 2017).

Students that meet or exceed this criterion are referred to as Former ELs. As mandated by ESEA, Former ELs must be monitored academically for at least two years and reported on for four years on the number and percentage of students meeting state academic standards.

Virginia allows testing accommodations for first- and second-year Former ELs. [Appendix B](#) provides information and descriptions of available testing accommodations.

Clarification for determining Former EL status is provided on the next page.

Monitor Year	Description of Status
Former EL Year 1	Student who earned an Overall Proficiency Level of 4.4 or greater on the WIDA ACCESS for ELLs in Spring 2023 OR Student who was assessed with the Proficiency Level 5 checklist from the Virginia ELP Checklist K-12 ⁵ in Spring 2023.
Former EL Year 2	Student who earned an Overall Proficiency Level of 4.4 or greater on the WIDA ACCESS for ELLs in Spring 2022 OR Student who was assessed with the Proficiency Level 5 checklist from the Virginia ELP Checklist K-12 ⁵ in Spring 2022.
Former EL Year 3	Student who earned an Overall Proficiency Level of 4.4 or greater on the WIDA ACCESS for ELLs in Spring 2021 OR Student who was assessed with the Proficiency Level 5 checklist from the Virginia ELP Checklist K-12 ⁵ in Spring 2021.
Former EL Year 4	Student who earned an Overall Proficiency Level of 4.4 or greater on the WIDA ACCESS for ELLs in Spring 2020 OR Student who was assessed with the Proficiency Level 5 checklist from the Virginia ELP Checklist K-12 ⁵ in Spring 2020.

SECTION VIII: EL PARTICIPATION IN GRADES 3-8 READING AND MATHEMATICS GROWTH ASSESSMENTS

Legislation passed in the 2021 General Assembly (HB2027 and SB1357) requires the implementation of “through year” growth assessments in reading and mathematics in grades 3-8.

The Grades 3–8 Reading and Mathematics Growth Assessments have been developed using existing SOL test items and are standardized assessments where the test security, conditions,

⁵ Virginia ELP Checklist for EL Students in Kindergarten through Grade 12 with Hearing and Visual Impairments

materials, and directions are the same for students. However, less emphasis is placed on some testing procedures, for example:

- Teachers may serve as examiners to their own students;
- Teachers do not need to focus on preparing the test site by taking down or covering all materials but instead ensure the student's workstation is clear of books and other materials not needed for the test.
- The school can maintain its normal routine while the assessments are occurring.
- Refer to the [*Grades 3-5 and Grades 6-8 Reading and Mathematics Growth Assessments Examiner's Manuals*](#) for details regarding testing procedures and directions.

EL COMMITTEES AND ASSESSMENT PLANS

If EL committees have not met prior to administration of a fall growth assessment:

- Accommodations may be assigned for ELs following the most recently implemented Assessment Participation Plan.
 - Ensure any assigned accommodations are added to the current academic year's Assessment Participation Plan when the EL Committee convenes.
- If the student did not have an Assessment Participation Plan in the prior year because they were in a non-tested grade (i.e., second grade), use the most recent classroom modifications that align to allowed state assessment accommodations.
- If the student is new to the division without a prior assessment plan on file, the school should use their best judgment on accommodations appropriate for student's English Language Proficiency (ELP) level.

GROWTH ASSESSMENT TESTING ACCOMMODATIONS

- Testing accommodations for the growth assessments provide ELs the opportunity to be assessed on content knowledge rather than English language proficiency.
- Testing accommodations may involve changes to testing procedures, testing materials, or the testing situation to allow students meaningful participation in an assessment.
- Direct linguistic testing accommodations involve adjustments to the language of the test, such as the use of a bilingual dictionary.
- Indirect linguistic testing accommodations involve adjustments to the conditions under which ELs take the test, such as a flexible schedule that may include breaks.

EXEMPTIONS FROM GROWTH ASSESSMENTS

Mathematics

- Because participation in mathematics testing for all students in Grades 3-8 is required, exemptions are not available for ELs for the Mathematics Grades 3-8 Growth Assessments.

- All EL students are required to participate in the Grades 3-8 Mathematics Growth Assessments.

Reading

- Recently Arrived ELs that will be exempt from the Grades 3-8 Reading SOL test during the spring SOL test administration are eligible for exemptions from the fall and winter Grades 3-8 Reading Growth Assessments.
 - Do not enroll these students for reading test sessions.
- Students that will not qualify for exemptions from the Grades 3-8 Reading SOL test during the spring SOL test administration are required to participate in the fall and winter Grades 3-8 Reading Growth Assessments.

ENGLISH LEARNERS UNABLE TO COMPLETE A GROWTH ASSESSMENT

As examiners are monitoring students, they should be especially observant of ELs who appear to be struggling with reading the test items. Testing may be discontinued after an EL has had sufficient time to answer items on the reading test and indicates that they are unable to complete any more items.

- The Examiner’s Manuals provide a detailed script to be read after the student indicates they are unable to complete any more items.
- Students who do not complete the test will not get a score.
- After the student has indicated verbally or non-verbally that he or she is unable to respond to any more test items:
- Read the script provided in the Examiner’s Manual to the student.
- Have the student sign out of the test.
- Collect the student’s testing ticket and all other test materials.
- After testing, the Examiner/Proctor should notify the School Test Coordinator (STC) of the need to discontinue testing for the EL student.
- The STC should notify the DDOT, then move the student’s incomplete test to a not-started test session.
- VDOE will remove these “exited” tests as part of the fall clean-up.

APPENDIX A: STANDARDS OF LEARNING ASSESSMENTS BY CONTENT AREA

Content Area	Virginia Assessments
Reading	• Grade 3 • Grade 4 • Grade 5 with Integrated Reading & Writing (IRW) component • Grade 6 • Grade 7 • Grade 8 with Integrated Reading & Writing (IRW) component • End-of Course (EOC) with Integrated Reading & Writing (IRW) component
Mathematics	• Grade 3 • Grade 4 • Grade 5 • Grade 6 • Grade 7 • Grade 8 • EOC Algebra I • EOC Geometry • EOC Algebra II
Science	• Grade 5 • Grade 8 • EOC Earth Science • EOC Biology • EOC Chemistry
History/ Social Science	• Virginia Studies • Civics & Economics • EOC Virginia and US History • EOC World History I • EOC World History II • EOC World Geography
Writing	• End-of Course (EOC)

APPENDIX B: DIRECT AND INDIRECT TESTING ACCOMMODATIONS FOR ELS

Content Area					Code	Testing Accommodation and Description (Refer to Section V: Descriptions of Testing Accommodations Available to ELs for more information on these accommodations).
Direct Linguistic Testing Accommodations						
H	M	R	S	W	7	Test Directions Delivery ▪ Written directions (in English only) to accompany oral test directions.
H	M		S	W	10	Read-Aloud Test ▪ Tests are read (in English only) to the student. Must be recorded or proctored.
H	M		S	W	11	Audio Test ▪ A pre-recorded (in English only) version of the test items.
		R			14	Read-Aloud Reading Test ▪ <i>Reading</i> test is read (in English only) to the student. Must be recorded or proctored. Student must meet specific criteria.
		R			15	Audio Reading Test ▪ A pre-recorded (in English only) version of the <i>Reading</i> test items. Student must meet specific criteria.
H	M	R	S	W	17	Bilingual Dictionary ▪ ELs may use a word-to-word bilingual dictionary.
				W – SP	25	Dictation to a Scribe ▪ Dictation (in English only) to a scribe (short-paper component only). Must be recorded or proctored. Requires transcription.
H	M	R	S	W – SP	29	English Dictionary ▪ Non-Writing Tests: ELs may use a general English dictionary. ▪ Writing Tests: Only permitted on short-paper component for the EOC Writing test (2010 SOL).
Indirect Linguistic Testing Accommodations						
H	M	R	S	W	1	Multiple Test Sessions ▪ Testing over two or more school days. Some instances require a paper test. <u>Multiple test sessions are not permitted on the short-paper component of the <i>Writing</i> test.</u>
H	M	R	S	W	4	Visual Aids ▪ Visual templates showing one word, sentence, line, or test item at a time. Code test accommodation 4 only when used on a paper test.
H	M	R	S	W	18	Examiner Records Responses ▪ Student marks in test booklet, responds verbally, points, or otherwise indicates a response. Must be recorded or proctored. Requires transcription.
H	M	R	S	W	31	Flexible Schedule ▪ Testing with breaks requires the test to be completed within one school day.

	Key
H	The testing accommodation is available for the <i>History/Social Studies</i> test.
M	The testing accommodation is available for the <i>Mathematics</i> test.
R	The testing accommodation is available for the <i>Reading</i> test and Integrated Reading and Writing (IRW) component of the <i>Reading</i> test.
S	The testing accommodation is available for the <i>Science</i> test.
W	The testing accommodation is available for the EOC <i>Writing</i> test. (MC: multiple-choice/technology-enhanced item (TEI) component. SP: short-paper component. Note: Paper/pencil <i>Writing</i> tests do not include TEI.)
	The testing accommodation is <u>not</u> available for the content area.

APPENDIX C: SAMPLE EL ASSESSMENT PARTICIPATION PLAN

Student: _____ Grade: _____ ELP Level: _____ STI: _____		Grades 3 – 5				Grades 6 – 8				Grades 9 – 12					Other Assessments
		R	M	H	S	R	M	H	S	R	M	H	S	W	Specify:
Test Directions Delivery															
Read-Aloud Test / Audio Test															
Read-Aloud / Audio <i>Reading</i> Test															
Bilingual Dictionary															
Dictation to a Scribe															
English Dictionary*															
Multiple Test Sessions															
Visual Aids															
Examiner Records Responses															
Flexible Schedule	☐ Every ____ Minutes														
	☐ Every ____ Questions														
	☐ At student request														
	☐ Other:														
Exempted from Participation															
Participation without Accommodations															

EL Committee Signatures

ESL Teacher: _____

Date: _____

Title III Coordinator: _____

Date: _____

Course Content Teacher: _____

Date: _____

Building Administrator or Designee: _____

Date: _____

Parent/Guardian: _____

Date: _____

EL Assessment Participation Resources

U.S. Department of Education. (2017, January 13). *Resource Guide: Accountability for English Learners under the ESEA*. Retrieved from Legislation -- English Language Acquisition State Grants:
<https://www2.ed.gov/programs/sfgp/eseatitleiiresourceaccountelsguide.pdf>

Virginia Board of Education. (2018). *8VAC20-131-30. Student Achievement Expectations*. Retrieved from Administrative Code:
[https://law.lis.virginia.gov/admincode/title8/agency20/chapter131/section30\](https://law.lis.virginia.gov/admincode/title8/agency20/chapter131/section30/)

Virginia Department of Education. (2022, November). *Participation in the Virginia Assessment Program: A Resource for Educators and Parents of Students with Disabilities*. Retrieved from Participation and Inclusion:
<http://doe.virginia.gov/testing/participation/guidelines-for-assessment-participation.docx>

Virginia Department of Education. (2022, August). *Examiner's Manuals*. Retrieved from SOL Test Administration & Development:
http://www.doe.virginia.gov/testing/test_administration/index.shtml#examiners_manuals